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Your reference

Our reference

Date

1 December 1989

Dear Mr Webb

The Home Secretary has asked me to thank you for your letter of 31 October about the law on obscenity and for your good wishes on his recent appointment. I am sorry you have not had an earlier reply.

The Government's general aim in this area is that standards in published material should be improved. The Government has, since it took office in 1979, either supported or introduced a number of specific measures to that end. It has supported legislation controlling indecent displays and the supply of video recordings, and it has introduced provisions to enable local authorities to control sex establishments through a licensing scheme, and to outlaw simple possession of child pornography. The Government has also supported unsuccessful attempts to strengthen the Obscene Publications Act 1959, and as you know the forthcoming Broadcasting Bill will extend the 1959 Act to broadcasting.

While the results of research into the effects of pornography have been inconclusive, there is considerable and growing public concern about pornography, and the Government believes that it must take account of this concern. While accepting that the law in this area needs to strike a careful balance between the rights of publishers to freedom of expression and the need to protect the public from offensive material, the Government believes that the present test of obscenity in the 1959 Act does not adequately meet the need to protect public sensibilities from the worst material which is available.

The Home Secretary has asked me to say that in the circumstances he doubts that a meeting to discuss these issues would be profitable.

Yours sincerely,

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